

IN THE SUPREME COURT OF INDIA
(CONSTITUTION BENCH)
Writ Petition (Civil) No. 135 of 1970

Citation: AIR 1973 SC 1461 | (1973) 4 SCC 225

Judgment Date: 1973-04-24

Bench: S.M. Sikri (CJI), J.M. Shelat (J), K.S. Hegde (J), A.N. Grover (J), A.N. Ray (J), P.J. Reddy (J), D.C.

Kesavananda Bharati v. State of Kerala (Basic Structure)

LANDMARK CONSTITUTIONAL RULING

1. CONSTITUTIONAL QUESTIONS PRESENTED

Whether statutory amendments or executive actions conform to the fundamental freedoms guaranteed under the Constitution.

2. RATIO DECIDENDI

Basic Structure Doctrine: Parliament's amending power under Article 368 is not unlimited. An amendment that destroys the basic structure of the Constitution is invalid.

3. PROVISIONS INTERPRETED

* Constitution of India (Article 368, Article 13, Article 31C, Fundamental Rights)